

THE SUPREME COURT

Establishment • Judges • Jurisdiction

Part V, Chapter IV | Articles 124 – 147 | "Guardian of the Constitution"

- Headings & Definitions
- Explanations
- Highlighter = Key Facts
- 🎯 Exam Tip
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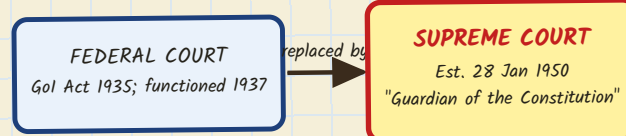


ESTABLISHMENT + COMPOSITION OF THE SUPREME COURT

Articles 124 to 147 (Chapter IV, Part V) deal with the **Supreme Court**. It was established on **28 January 1950**, and is called the "Guardian of the Constitution."

The Supreme Court replaced the Federal Court — the Federal Court had been established under the Government of India Act, 1935, and began functioning in 1937.

🧠 Fig 1: Federal Court → Supreme Court



Articles 124–147, Chapter IV, Part V

Article 124 – Establishment & Strength of Judges

Judges' Strength	Composition
Originally	1 Chief Justice + 7 other judges

At present

1 Chief Justice + 33 other judges

- **Appointment:** made by the **President** of India
- **Tenure:** a judge holds office till **65 years of age** — it is not a fixed number of years like 5 or 4 or 3 years

✗ Common Mistake

Supreme Court judges do *not* retire after a fixed term of years — their tenure runs till they turn **65 years of age**.

Removal — The Grounds

A Supreme Court judge's office can fall vacant either by **resignation** or by **removal**. Both resignation and removal are addressed to the **President** (the same authority that appointed the judge).

Ground for removal: **proven misbehaviour and incapacity**.



Compare with the President

The President is removed for "violation of the Constitution." A Supreme Court judge is removed for "proven misbehaviour and incapacity" — two different grounds for two different offices!

The entire removal procedure is laid down in the **Judges (Inquiry) Act, 1968**.

(Illustrative example discussed in class: in the case of Yashwant Verma, bundles of currency notes were reportedly recovered from his house and a committee looked into the matter — though no formal removal/impeachment has actually happened in that case yet.)

🎯 Exam Tip

Two different grounds to remember: **President** → "violation of the Constitution." **SC/JC Judge** → "proven misbehaviour and incapacity."



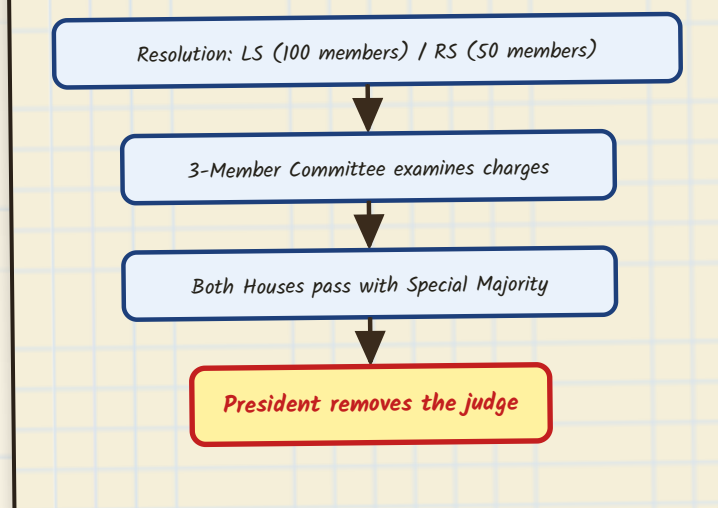
THE REMOVAL PROCEDURE + QUALIFICATIONS

Understand the full removal procedure carefully — this is important:

1. A resolution for removal can be moved in either the **Lok Sabha** or the **Rajya Sabha**
2. If moved in the Lok Sabha, it needs the support of **100 members**; if moved in the Rajya Sabha, it needs the support of **50 members**
3. If approval/admission is granted, a **three-member committee** is set up to examine whether the charges of "proven misbehaviour and incapacity" are true
4. If the charges are found true, **both Houses** must pass the motion with a **special majority**
5. Finally, the **President** removes the judge by an order



Fig 2: Steps to Remove a Judge



✗ Common Mistake

This removal process is *not officially called* "impeachment" in India the way it is used for the President's removal in some countries — the President is the Head of State and Supreme Commander of the Armed Forces, so a different, more respectful terminology is used for the judge-removal process even though the broad idea is borrowed from the USA.



Qualifications for a Supreme Court Judge

- Has been a **Judge of a High Court for 5 years**, or
- Has been an **Advocate of a High Court for 10 years** (this can be across multiple High Courts, not necessarily just one), or
- Is, in the opinion of the President, a **distinguished jurist**



Exam Tip

Remember the "5 / 10 / distinguished" pattern: **5 years** as HC judge, **10 years** as HC advocate, or a **distinguished jurist** in the President's opinion.



Memory Trick

Removal steps in short: **Resolution** → **Committee (3)** → **Special Majority (both Houses)** → **President removes**. Just remember "R-C-S-P"!

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APPOINTMENT OF JUDGES — THE COLLEGIUM SYSTEM

The President appoints judges, but not entirely on his own — he acts on the recommendation of the Collegium. Note: the word "**Collegium**" is not written anywhere in the Constitution — it was created through case law!

1982 — SP Gupta Case

Called the **First Judges Case**. The Supreme Court held that the President can act as per his own will — the **CJI's advice is not binding** on him.

Second Judges Case

The Supreme Court reversed course: the **CJI's advice is binding** on the President. The CJI must also consult **2 senior judges** before advising — this is where the **Collegium concept** originates.

Third Judges Case

CJI's advice remains binding, but now the CJI must consult **4 senior judges** (a

Collegium of 5) before sending the recommendation to the President.

99th Constitutional Amendment

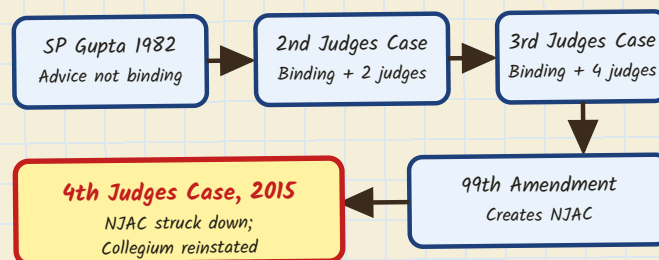
Parliament created the **NJAC (National Judicial Appointments Commission)** to replace the Collegium system entirely.

2015 – Fourth Judges Case

The Supreme Court declared the **99th Amendment / NJAC unconstitutional** and struck it down — the **Collegium system was reinstated** and continues to operate even today.



Fig 3: Evolution of Judicial Appointments



Food for thought

As discussed in class — many senior judges' family members have also gone on to become judges (e.g. Justice D.Y. Chandrachud's father was also a Supreme Court judge). Because the Collegium recommends its own future members, this pattern of "self-appointment" is something critics of the Collegium system point to.



Common Mistake

The Collegium system is *not* a constitutional provision — it exists only because of the **Second Judges Case** judgment, not any Article of the Constitution.



Exam Tip

Order to remember: 1st (1982, not binding) → 2nd (binding, +2 judges) → 3rd (binding, +4 judges) → 99th Amendment (NJAC) → 4th (2015, NJAC struck down, Collegium back).



ARTICLES 125 TO 130 Article 125 – Salary

Salaries and allowances of judges are charged as **expenditure** — this forms a **non-votable** ("charged") part of the budget.

Article 126 – Appointment of Acting Chief Justice

If the office of Chief Justice is vacant, the **President** appoints someone as the **Acting Chief Justice** — similar to how an Acting President can be appointed.

Article 127 – Appointment of Ad Hoc Judges

"Ad hoc" means **temporary**. This is used when the **quorum** of judges is not being met. The **CJI** decides this, in consultation with the **President**, and temporary judges may be called in — similar in spirit to the quorum requirement referred to for Parliament.

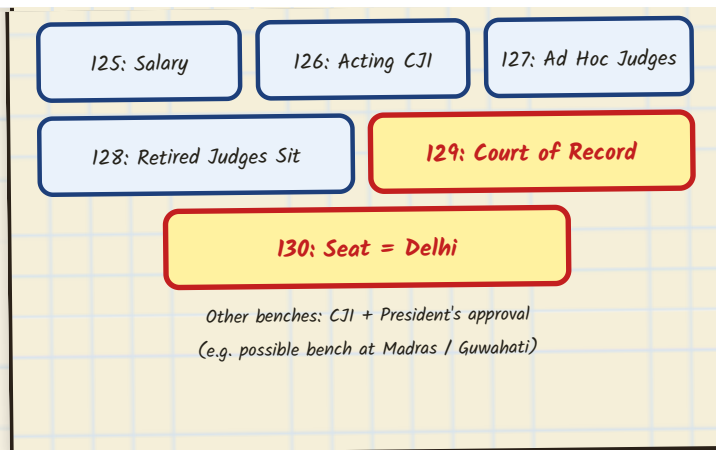
Article 128 – Attendance of Retired Judges

A **retired** Supreme Court judge may be called back to sit and act as a judge for a specific matter — for example, if a retired judge who delivered a judgment (such as the one on the minority status of Aligarh Muslim University) has special knowledge relevant to a related future case.



Fig 4: Articles 125–130 at a Glance





Article 129 – Court of Record

The Supreme Court is a "Court of Record" and can **punish for contempt of itself**. This means no one can attack the credibility of the Court's decisions without consequence — as illustrated by the case where remarks made against courts by Vikas Divyakirti (founder of Drishti IAS) led to a summons for explanation.

"Court of Record" also means every judgment/proceeding of the Supreme Court is officially recorded and can be cited/used in future judgments.

✗ Common Mistake

Don't think contempt-of-court powers are only symbolic — under Article 129, they allow the Court to actually punish anyone (including public commentators) who undermines the judiciary's authority.

Article 130 – Seat of the Supreme Court

Delhi is the seat of the Supreme Court, but the CJI, with the President's approval, can designate another place as a seat/bench. Currently, however, the seat remains only in Delhi.

🎯 Exam Tip

Quick recall: **125**-Salary, **126**-Acting CJI, **127**-Ad hoc judges, **128**-Retired judges sit, **129**-Court of Record/contempt, **130**-Seat at Delhi.



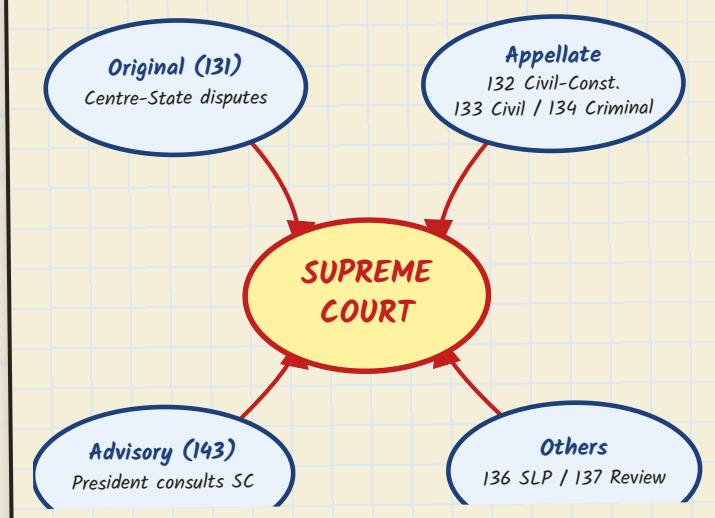
JURISDICTION OF THE SUPREME COURT (131-144)

Article 131 – Original Jurisdiction

"Original" means you can approach the Supreme Court **directly** — not by way of appeal. This jurisdiction is also **exclusive**: only the Supreme Court can hear these matters.

- Disputes **between the Centre and the States, or between States**
- **Excluded**: water disputes are *not* handled under this jurisdiction
- **Excluded**: disputes arising from a **pre-constitutional treaty** are also *not* handled here

⚡ Fig 5: Types of Supreme Court Jurisdiction



Articles 132, 133, 134 – Appellate Jurisdiction

Under appellate jurisdiction you cannot go directly — you approach the Supreme Court through **appeal** from the High Court.



- **132**: appeal in certain matters (constitutional/civil in nature)
- **133**: appeal in **civil** matters (e.g. marriage, divorce)
- **134**: appeal in **criminal** matters (e.g. theft, murder)

Article	Deals With
131	Original & exclusive jurisdiction (Centre-State / State-State disputes)

132, 133, 134	Appellate jurisdiction (constitutional, civil, criminal)
135	Jurisdiction of the old Federal Court now exercised by the Supreme Court
136	Special Leave Petition (SLP)
137	Review of its own judgments/orders (judicial review)
138	Enlargement of jurisdiction (by Parliament)
139	Conferment of power to issue certain writs
140	Ancillary (supporting) powers
141	Law declared by SC binding on all courts
142	Power to pass any order for "complete justice"
143	Advisory jurisdiction — President consults SC
144	Civil & judicial authorities to act in aid of the SC

Notable Articles Explained

- **135:** whatever powers the old **Federal Court** had, all such power now belongs to the Supreme Court
- **136 (SLP):** a party can seek "special leave" from the Supreme Court to hear their case urgently — but this is **not a matter of right**; thousands of SLPs are filed daily, and due to a huge backlog and shortage of judges, not all get heard
- **137:** gives the power of judicial review — the Supreme Court can review and change its own earlier judgments. This concept, like judicial independence, was borrowed from the **USA**
- **138:** Parliament can expand the Supreme Court's jurisdiction
- **139:** Parliament can confer the power to issue additional writs beyond what the SC normally issues
- **140:** "Ancillary" means supporting/cooperative — Parliament can give extra supporting powers to the SC
- **141:** any law declared by the Supreme Court is binding on **all courts** in the country
- **142:** the SC can pass any order or decree needed to deliver **complete justice** in a pending matter

- **143 (Advisory):** the President can consult the Supreme Court on questions of law/fact. Recent example: when the Tamil Nadu Governor withheld assent on 13 bills, the matter reached the Supreme Court, which gave a time limit for such decisions; subsequently, President Draupadi Murmu referred **14 questions** to the Supreme Court under this advisory jurisdiction, on whether courts can direct the Governor/President on granting assent to bills
- **144:** all civil and judicial authorities in the country must act in **aid of the Supreme Court**

✗ Common Mistake

Don't confuse **Original Jurisdiction (131)** — direct & exclusive — with **Appellate Jurisdiction (132-134)**, where you must go through appeal from a lower court, not directly.

🎯 Exam Tip

Under Article 131, remember what is **excluded**: water disputes and pre-constitutional treaty disputes are NOT decided by the Supreme Court under its original jurisdiction.

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★ EXAM-READY SUMMARY *Firsts & Notable Facts*

- No woman has served as **Chief Justice of India** so far
- Justice **B.V. Nagarathna** is set to become the **first female CJI**, expected in **September 2027**
- Justice **Fatima Beevi** was the **first female judge** of the Supreme Court, and was also conferred the **Padma Shri**
- The **first CJI** of India was **H.J. Kania**
- As discussed in class, the CJI at that time was **B.R. Gavai**

 Fig 6: Articles 124–144 – The Mnemonic Chain

124-Establishment	125-Salary	126-Acting CJI
127-Ad Hoc	128-Retired sit	129-Record
130-Seat(Delhi)	131-Original	132-134 Appeal
135-Federal Ct	136-SLP	137-Review
138-Enlarge		
139-Writs · 140-Ancillary · 141-Binding · 142-Justice · 143-Advisory		



✨  "Established 28 Jan 1950 → Guardian of the Constitution → Judges via Collegium → Original, Appellate & Advisory jurisdiction" – the whole chapter in one breath!

Key Numbers to Remember

- Judges strength: originally 1+7, now 1+33
- Retirement age: 65 years
- Removal support needed: 100 (Lok Sabha) / 50 (Rajya Sabha)
- Qualification: 5 yrs HC judge / 10 yrs HC advocate / distinguished jurist
- Collegium origin: Second Judges Case (not in the Constitution)
- 99th Amendment (NJAC) struck down in the Fourth Judges Case, 2015

Exam Tip

For quick revision, memorise Articles in blocks: 124–130 (Judges & Seat), 131–136 (Original/Appeal/SLP), 137–142 (Review & Powers), 143–144 (Advisory & Aid).

Common Mistake

Don't say the Collegium system is written in the Constitution — it is a product of the **Second and Third Judges Cases**, later challenged (and the challenger, NJAC, was struck down) in the **Fourth Judges Case, 2015**.

Memory Trick

Whole chapter in one line: "1950 birth as Guardian → Collegium picks the judges → 131 to 144 gives it the power to hear everything from Centre-State fights to the President's own questions."

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